

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chanan Berkovits	Team: Team # 4	CCRB Case #: 201008353	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/15/2010 6:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/15/2011	Precinct: 32		
Date/Time CV Reported Mon, 06/21/2010 12:36 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/21/2010 12:36 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jaysen Basnight	29694	936178	032 PCT
2. POM William Butler	00691	933664	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LSA Thomas Oneill	00000	873801	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Butler	Abuse: PO William Butler stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM William Butler	Abuse: PO William Butler searched § 87(2)(b)	B . Unsubstantiated
C . POM Jaysen Basnight	Abuse: PO Jaysen Basnight searched § 87(2)(b)	C . Unsubstantiated
D . POM William Butler	Abuse: PO William Butler searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	D . Exonerated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB over the phone on June 21, 2010 (encl. 5A-5B).

On June 15, 2010, PO Jaysen Basnight, PO William Butler, and LSA Thomas O'Neill stopped § 87(2)(b) and § 87(2)(b). The following allegations resulted:

- **Allegation A – Abuse of Authority:** PO William Butler stopped § 87(2)(b) and § 87(2)(b) § 87(2)(g).
§ 87(2)(b) it is recommended that **allegation A be exonerated.**
- **Allegation B – Abuse of Authority:** PO William Butler searched § 87(2)(b).
- **Allegation C – Abuse of Authority:** PO Jaysen Basnight searched § 87(2)(b) § 87(2)(g).
§ 87(2)(b), it is recommended that **allegations B and C be unsubstantiated.**
- **Allegation D – Abuse of Authority:** PO William Butler searched the car in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g).
§ 87(2)(b), it is recommended that **allegation D be exonerated.**

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *black male*, § 87(2)(b), *black hair, brown eyes.*

§ 87(2)(b) provided a brief telephone statement on June 30, 2010 (encl. 6). Because he resides in Connecticut, § 87(2)(b) was interviewed over the phone on July 7, 2010 (encl. 7A-7F) § 87(2)(g). On June 15, 2010, at approximately 6:30 p.m., § 87(2)(b) picked up his friend, § 87(2)(b) § 87(2)(b) near the intersection of § 87(2)(b) and § 87(2)(b) in Manhattan. § 87(2)(b) was driving a black 2002 Nissan Acura 3.2 TL. The two front side windows of the car are tinted. The windows were rolled down all the way while § 87(2)(b) was driving. § 87(2)(b) was carrying a clear plastic cup containing juice. § 87(2)(b) and § 87(2)(b) drove for approximately 5-10 minutes. They parked the car at a Muni Meter near the intersection of § 87(2)(b) and § 87(2)(b). § 87(2)(b) rolled up the windows.

§ 87(2)(b) and § 87(2)(b) remained in the car for less than one minute. During that time they were gathering their things, and securing the car. § 87(2)(b) and § 87(2)(b) exited the car, and § 87(2)(b) heard a voice ask § 87(2)(b) “What do you have in your hand?” § 87(2)(b) turned and saw PO Basnight on the passenger side of the car. § 87(2)(b) told PO Basnight that he was holding a cup of juice. PO Butler approached § 87(2)(b) from behind and told him to put his hands on the hood of the car. § 87(2)(b) complied. § 87(2)(b) was holding his wallet and his phone, and he placed them on the hood. PO Butler asked § 87(2)(b) if he had any weapons on him, and § 87(2)(b) said that he did not. PO Butler felt the outside of § 87(2)(b)'s clothing starting on his arms and moving down his upper body and legs. PO Butler then reached into the front and back pockets of § 87(2)(b)'s pants. There was nothing in § 87(2)(b)'s pockets other than a pack of gum.

When PO Butler finished searching § 87(2)(b) he moved him to the back of the car where LSA O'Neill was standing. PO Basnight brought § 87(2)(b) to the back of the car as well. PO Butler began searching § 87(2)(b)'s car. He looked in the front seat on both sides of the car, and opened the glove compartment. § 87(2)(b) did not know if PO Butler searched any other areas of the car. After approximately 2-3 minutes of searching the car, PO Butler asked § 87(2)(b) where his driver's license was, and § 87(2)(b) told him it was in a compartment inside the car's center console. PO Butler retrieved § 87(2)(b)'s license, and approached LSA O'Neil. PO Butler whispered something in LSA O'Neil's ear, but § 87(2)(b) could not hear what he said. LSA O'Neil nodded, and officers handcuffed § 87(2)(b) and § 87(2)(b). PO Butler asked who the car belonged to, and § 87(2)(b) said that it was his. LSA O'Neil said that since § 87(2)(b) owned the car, he would be the only one arrested. The officers removed § 87(2)(b)'s handcuffs. § 87(2)(b) never saw the officers recover anything from his car.

The officers took § 87(2)(b) to the 32nd Precinct stationhouse. § 87(2)(b) asked why he had been arrested, and PO Basnight replied, "Blades are illegal in New York City." § 87(2)(b) later remembered that he owned a silver cigarette lighter with a button on it which, when pressed, causes a blade approximately .5-1 inches long to flip out. § 87(2)(b) did not know if this lighter had been in his car, or where in the car it would have been kept.

Victim: § 87(2)(b)

- § 87(2)(b) *black male*, § 87(2)(b), *black hair, brown eyes*. § 87(2)(b).

§ 87(2)(b) was interviewed at the CCRB on July 23, 2010 (encl. 8A-8E). § 87(2)(g) When § 87(2)(b) entered § 87(2)(b)'s car, he was carrying nothing but his wallet and a clear eight-ounce cup of soda. § 87(2)(b)'s car windows were up while they looked for parking. § 87(2)(b) and § 87(2)(b) turned left onto § 87(2)(b) drove two blocks, and parked legally on an unknown street. They were looking for parking for less than five minutes. The space in which they parked was legal, and there were no signs or other indications that one could not park there.

After § 87(2)(b) had turned off the car and removed the key from the ignition, he and § 87(2)(b) had a conversation about whether or not § 87(2)(b)'s cousin would be joining them at the concert. This conversation lasted approximately 1-2 minutes. Both § 87(2)(b) and § 87(2)(b) were in the process of exiting the car, when § 87(2)(b) observed PO Basnight and LSA O'Neill standing next to the front passenger's side door. PO Basnight told § 87(2)(b) to get back into the car, and § 87(2)(b) complied. § 87(2)(b) observed PO Butler standing next to the front driver's side door.

PO Butler told § 87(2)(b) to exit the car and stand up against it, and § 87(2)(b) complied. PO Butler felt § 87(2)(b)'s upper body and his appendages outside his clothes. § 87(2)(b) did not see PO Butler make any other physical contact with § 87(2)(b). PO Butler then told § 87(2)(b) to stand by the trunk of the car. While PO Butler was frisking § 87(2)(b) PO Basnight asked § 87(2)(b) if there was alcohol in his drink. § 87(2)(b) said that there was not. PO Basnight took the drink, smelled it, and returned it to § 87(2)(b). PO Basnight asked § 87(2)(b) for his identification, and he provided it. When PO Butler finished frisking § 87(2)(b) PO Basnight told § 87(2)(b) to exit the car and stand against it. § 87(2)(b) stood facing the car, and PO Basnight asked him if he had any weapons or drugs on his person and § 87(2)(b) said that he did not. PO Basnight felt § 87(2)(b)'s upper body, his appendages, and his buttocks outside his clothing. PO Basnight told § 87(2)(b) to remove everything from his pockets, and he did so. PO Basnight reached into § 87(2)(b)'s pockets and pulled out the fabric of the pockets out.

PO Basnight took § 87(2)(b) to the back of § 87(2)(b) car, and had him stand next to § 87(2)(b). § 87(2)(b) and § 87(2)(b) were facing away from the car. LSA O'Neill asked § 87(2)(b) if there was anything illegal in his car, and § 87(2)(b) said that there was not. § 87(2)(b) said that his wallet was in the center console. PO Butler said that he was going to search the car. Initially during his interview, § 87(2)(b) stated that PO Butler searched the front seat, the center console, the glove compartment, and the backseat. He looked in front of the seats, under them, and on top of them. Later in his interview, § 87(2)(b) stated that, because he was facing away from the car, he could not see PO Butler search any areas other than the driver's seat and the center console.

After searching the car for approximately 10 minutes, PO Butler went to speak to LSA O'Neill. LSA O'Neill told the other officers to handcuff § 87(2)(b) and § 87(2)(b) and they did so. PO Butler showed § 87(2)(b) an object and asked him what it was. § 87(2)(b) could not see the object. § 87(2)(b) said that the object was a lighter. § 87(2)(b) stated that the lighter had a blade attached to it; however, he never saw this blade. § 87(2)(b) never saw this item inside the car. PO Butler asked to whom it belonged and § 87(2)(b) said that it was in his car, so it was his. The officers unhandcuffed § 87(2)(b) and arrested § 87(2)(b).

NYPD Statements:

Subject Officer: PO WILLIAM BUTLER

- § 87(2)(b) -old white male, § 87(2)(b), brown hair, blue eyes
- Assigned to conditions, worked in uniform from 3:00 p.m. to 11:35 p.m. with PO Basnight and LSA O'Neill, operating out of unmarked vehicle 189.

Memo Book Entries

PO Butler's memo book (encl. 15A-15D) records that at 7:05 p.m., he observed a black Acura with Connecticut plates § 87(2)(b) traveling northbound on § 87(2)(b) from § 87(2)(b). After making a u-turn through an intersection, the vehicle had excessive window tints and then parked on a fire hydrant in front of § 87(2)(b). PO Butler approached the car, and the defendant stepped out of it. PO Butler asked the defendant if he had any weapons, and he stated, "Yes," then stuttered and said, "No," when PO Butler asked him where they were. PO Butler patted the defendant for safety and asked him to step to the rear of the vehicle for his safety and for PO Butler's. PO Butler asked the defendant for his driver's license, and he said it was in the center console and that PO Butler needed to push a button to open the console. PO Butler went to retrieve the license and recovered a switchblade with the license. PO Butler placed the defendant under arrest. The defendant asked why he was being arrested. PO Butler showed the defendant the knife. The defendant said, "That's just a lighter switchblade" that he had had in the car for a long time. At 7:16 p.m., PO Butler arrested one individual in front of § 87(2)(b). PO Basnight was on scene. PO Butler gave PO Basnight the knife at the stationhouse.

CCRB Testimony

PO Butler was interviewed at the CCRB on December 8, 2010 (encl. 16A-16C). On June 15, 2010, at approximately 7:05 p.m., PO Butler was driving eastbound on § 87(2)(b) near the intersection of § 87(2)(b) and § 87(2)(b) in Manhattan, when he observed a car make a u-turn on § 87(2)(b). PO Butler observed that all four of the car's side windows were tinted, and he decided to stop it because of this fact and because it had made an illegal u-turn. The car parked at a fire hydrant in front of § 87(2)(b) and PO Butler parked immediately behind it. PO Butler exited his car and began approaching the civilian car. As PO Butler was approaching, § 87(2)(b) exited the car. PO Butler had not addressed § 87(2)(b) prior to when § 87(2)(b) exited

his car. § 87(2)(b) was standing on the passenger's side of the car. PO Basnight approached on the passenger's side of the car. PO Butler never frisked or searched § 87(2)(b) nor did he see any officers do so.

PO Butler asked § 87(2)(b) if he had any weapons, and § 87(2)(b) answered, "Yes." PO Butler frisked § 87(2)(b)'s waistband and the front pockets of his pants. PO Butler probably frisked the entire front of § 87(2)(b)'s body, but he did not recall specifically. PO Butler did not feel anything during this frisk, and he did not reach into § 87(2)(b)'s pockets. PO Butler frisked § 87(2)(b) so that § 87(2)(b) could not reach for any weapons on his person. While conducting the frisk, PO Butler asked § 87(2)(b) where he kept his weapons, and § 87(2)(b) replied, "No." § 87(2)(b) never indicated where he kept his weapons.

After completing the frisk, PO Butler told § 87(2)(b) to stand near the rear of the car, and § 87(2)(b) complied. PO Butler asked § 87(2)(b) for his driver's license, and § 87(2)(b) said that it was in the car's center console and that PO Butler needed to press a button in order to access it. PO Butler entered § 87(2)(b)'s car and pushed the button to open the center console. PO Butler had not entered the car prior to the point. He did not search any areas of the car other than the center console. Inside the console was § 87(2)(b)'s wallet as well as a switchblade. The knife had not been visible prior to when PO Butler pressed the button to open the console. When PO Butler observed the knife, he decided to arrest § 87(2)(b). PO Butler showed § 87(2)(b) the knife, and § 87(2)(b) said that the knife was his. PO Butler chose not to arrest § 87(2)(b) because § 87(2)(b) admitted ownership of the knife. PO Butler arrested § 87(2)(b) and reached into his pockets. PO Butler then conducted a search of § 87(2)(b)'s car. He searched the glove compartment and the backseat. PO Butler did not see other officers enter or search § 87(2)(b)'s car at any point during this incident.

At the time of his interview, PO Butler was shown the stop and frisk reports prepared by PO Basnight in regards to this incident. When shown that the report prepared for § 87(2)(b) recorded that § 87(2)(b) was stopped because he made furtive movements, PO Butler stated that the only furtive movement he observed was when he exited his car of his own volition. PO Butler believed that the fact that, while being stopped by officers, § 87(2)(b) exited the car unsolicited indicated that he had something to hide. When shown that the report also recorded that § 87(2)(b) was searched, PO Butler stated that PO Basnight made a mistake when completing the form. When shown that the report prepared for § 87(2)(b) recorded that § 87(2)(b) was frisked and searched because he had a bulge that looked like a knife as well as the outline of a knife, PO Butler stated that he never observed such a bulge or outline on § 87(2)(b)'s person. When shown that the report recorded that § 87(2)(b) made furtive movements, PO Butler stated that he never observed these movements.

Subject Officer: PO JAYSEN BASNIGHT

- § 87(2)(b) -old black male, § 87(2)(b), red hair, brown eyes, tattoo on left hand.
- Assigned to conditions, worked in uniform from 4:00 p.m. to 12:35 a.m. with PO Butler and LSA O'Neill, operating out of a black Crown Victoria.

Stop and Frisk Reports

The stop and frisk report which PO Basnight prepared for § 87(2)(b) (encl. 9D-9E) records that the circumstances leading to the stop were furtive movements. He was frisked because he made furtive movements and searched because he admitted to possessing weapons. The stop and frisk report which PO Basnight prepared for § 87(2)(b) (encl. 9A-9C) records that the circumstances leading to the stop were furtive movements and a suspicious bulge that looked

like a knife. He was frisked because he made furtive movements and searched because of a hard object and the outline of a weapon.

Arrest Report

§ 87(2)(a) 160.50

CCRB Testimony

PO Basnight was interviewed at the CCRB on January 11, 2011 (encl. 14A-14C). § 87(2)(g)

PO Butler approached § 87(2)(b) while PO Basnight approached the passenger's side of the Acura where § 87(2)(b) was sitting. PO Butler asked him if he had any weapons. § 87(2)(b) replied, "Yes. No." This answer made the officers more suspicious of § 87(2)(b). PO Butler never asked § 87(2)(b) where his weapons were located. PO Butler frisked § 87(2)(b) for weapons. PO Butler did not recover any weapons. PO Basnight did not see PO Butler reach into § 87(2)(b)'s pockets during this frisk. At the time of his interview, PO Basnight was shown the stop and frisk report which he prepared for § 87(2)(b). This report records that § 87(2)(b) was searched because of his admission of weapons possession. PO Basnight stated that while he did not see this search take place, PO Butler must have informed him while he was completing the report that he searched § 87(2)(b).

Since § 87(2)(b) had initially stated that he had weapons, the officers had reason to believe that there were weapons inside the car where § 87(2)(b) could reach them. There was no other reason to believe that § 87(2)(b) was armed. PO Basnight frisked § 87(2)(b) by patting down his torso, his legs, his groin area, and his shoes. Initially during his interview, PO Basnight stated that he did not feel any hard objects during this frisk nor did he observe any bulges on § 87(2)(b)'s person. PO Basnight was then shown that the stop and frisk report he prepared for § 87(2)(b) records that PO Basnight searched § 87(2)(b) because of a hard object and the outline of a weapon. PO Basnight stated that while frisking § 87(2)(b) he felt a hard object and observed the outline of that object. PO Basnight did not recall what this object was or the shape of it. He reached into one of § 87(2)(b)'s pockets to remove this object, but he did not know which pocket this was. § 87(2)(b) was not carrying anything during this incident. No weapon was recovered from this frisk and search.

PO Butler asked § 87(2)(b) for his driver's license. § 87(2)(b) said that it was in the center console of his car. PO Butler entered the car in order to retrieve § 87(2)(b)'s license. No officers entered or searched § 87(2)(b) prior to when PO Butler went to get the license. PO Butler recovered a cigarette lighter with a switchblade attached to it which was in the center console with § 87(2)(b)'s driver's license. PO Basnight had not observed the knife prior to when PO Butler removed it from the car. § 87(2)(b)

His car was taken back to the stationhouse where the officers searched it. This search was the only search of the car which the officers performed at any time. At the time of his interview, PO Basnight was shown that the stop and frisk reports record that the circumstances leading to stopping § 87(2)(b) and § 87(2)(b) were "furtive movements." The only furtive movement which PO Basnight could recall either individual making was when § 87(2)(b) exited his car.

Witness Officer: LSA THOMAS O'NEILL

- § 87(2)(b) -old white male, § 87(2)(b), brown and gray hair, blue eyes, mustache.
- Assigned as the special operations lieutenant, worked in uniform from 2:45 p.m. to 11:30 p.m. with PO Butler and PO Basnight, operating out of a black Crown Victoria.

LSA O'Neill was interviewed at the CCRB on January 11, 2011 (encl. 18A-18C). § 87(2)(b)

Initially during his interview, LSA O'Neill stated that the civilian car pulled over next to a fire hydrant in front of § 87(2)(b) after the officers turned on their lights. Later in his interview, he stated that he was not sure if the civilian car had already begun pulling over before the officers turned on the turret lights.

After § 87(2)(b) exited the car, PO Butler approached him. PO Basnight approached § 87(2)(b) and LSA O'Neill stood at the back of § 87(2)(b)'s car. PO Butler asked § 87(2)(b) for his license, registration, and insurance card. § 87(2)(b) said they were in the center console of his car, and attempted to reenter the car and obtain them. PO Butler stopped § 87(2)(b) from going into his car. LSA O'Neill did not recall what motion § 87(2)(b) made to reenter the car or how far into the car he got before PO Butler stopped him. PO Butler asked § 87(2)(b) if he had any weapons. § 87(2)(b) replied, "Yes. No." PO Butler repeated his question, and § 87(2)(b) said that he did not have any weapons. PO Butler never asked § 87(2)(b) where his weapons were.

Because § 87(2)(b) had initially said that he had weapons, PO Butler told him that he was going to frisk him for weapons. PO Butler frisked § 87(2)(b)'s entire body. LSA O'Neill did not recall if PO Butler reached into any of § 87(2)(b)'s pockets. At the time of his interview LSA O'Neill was shown that the stop and frisk report prepared by PO Basnight for § 87(2)(b) records that § 87(2)(b) was searched because he admitted to possessing weapons. LSA O'Neill stated that the search referred to on this report took place after § 87(2)(b) was arrested and not prior to when he was handcuffed or at the time of this initial frisk. PO Basnight told § 87(2)(b) to exit the car. PO Basnight frisked § 87(2)(b)'s entire body. LSA O'Neill did not see PO Basnight reach into § 87(2)(b)'s pockets. At the time of his interview LSA O'Neill was shown that the stop and frisk report prepared by PO Basnight for § 87(2)(b) records that he was searched because of a hard object and outline of a knife on his person. LSA O'Neill did not observe the hard object, the outline of the knife, or the search. After completing the frisk, PO Basnight told § 87(2)(b) to stand at the back of the car with LSA O'Neill.

PO Butler went into the car to retrieve § 87(2)(b)'s license, registration, and insurance card from the center console. PO Butler returned with a cigarette lighter switchblade which had been in the center console with § 87(2)(b)'s documents. LSA O'Neill had not seen the knife prior to when PO Butler brought it out of the car. The officers did not search or enter the car prior to when PO Butler went to retrieve § 87(2)(b)'s license.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of January 28, 2011 with regard to the incident (encl. 24).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (encl. 4A-4B).

Subject Officers CCRB History

- PO Butler has been a member of the service for seven years and there are two substantiated CCRB allegations against him. (encl. 3A).
 - In case number 200717516, frisk and search of person allegations were substantiated against PO Butler. The department was unable to prosecute, and he received no disciplinary action.
- PO Basnight has been a member of the service for six years and there is one substantiated CCRB allegation against him. (encl. 3B).
 - In case number 200706401, a discourteous word allegation was substantiated against PO Basnight. He received a B command discipline.

Conclusion

Identification of Subject Officers

- PO Butler acknowledged interacting with § 87(2)(b) PO Butler stated that it was his decision to stop § 87(2)(b) § 87(2)(g)
- PO Basnight acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A – PO William Butler stopped § 87(2)(b) and § 87(2)(b)

Section 375.12b(2) of the Vehicle and Traffic Law (encl. 1) states, “No person shall operate any motor vehicle upon any public highway road or street... the sidewings or side windows of which on either side forward of or adjacent to the operator’s seat are composed of, covered by or treated with any material which has light transmittance of less than seventy percent.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **allegation A be closed as exonerated.**

Allegation B – PO William Butler searched § 87(2)(b)

§ 87(2)(b) stated that PO Butler approached him and asked him if he possessed any weapons. § 87(2)(b) said that he did not have any. PO Butler then frisked § 87(2)(b) and reached into his pockets. § 87(2)(b) did not hear PO Butler ask § 87(2)(b) if he had weapons, nor did he see PO Butler reach into § 87(2)(b)'s pockets. PO Butler stated that when he asked § 87(2)(b) if he possessed any weapons, § 87(2)(b) replied, "Yes." PO Butler then frisked § 87(2)(b) because he admitted to possessing weapons. He did not reach into his pockets. PO Basnight and LSA O'Neill confirmed that § 87(2)(b) initially said that he had weapons, and they did not see PO Butler reach into § 87(2)(b)'s pockets. The stop and frisk report prepared by PO Basnight records that § 87(2)(b) was searched because he admitted to possessing weapons. PO Butler believed that this entry was mistake on PO Basnight's part, whereas, PO Basnight stated that PO Butler informed him after the incident that he had searched § 87(2)(b). LSA O'Neill stated that the search of § 87(2)(b) occurred after he had been arrested. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **allegation B be closed as unsubstantiated.**

Allegation C – PO Jaysen Basnight searched § 87(2)(b)

§ 87(2)(b) stated that PO Basnight approached him, felt the outside of his clothing and reached into his pockets. § 87(2)(b) was not carrying anything other than his wallet. § 87(2)(b) did not recount observing this frisk and search. PO Basnight stated that he frisked § 87(2)(b) because § 87(2)(b) had admitted to possessing weapons and the officers did not know where these weapons were located or if § 87(2)(b) was able to reach them. He initially stated that he did not reach into § 87(2)(b)'s pockets. When shown that the stop and frisk report he prepared for § 87(2)(b) stated that § 87(2)(b) was searched because of a hard object and the outline of a knife on his person, PO Basnight stated that he observed the outline of a knife and felt a hard object on § 87(2)(b)'s person at the time of the frisk. He then reached into the pocket containing that object. He did not recall into which pocket he reached or what the hard object was. PO Butler and LSA O'Neill did not observe this search nor did they observe the outline of a knife or a hard object on § 87(2)(b)'s person. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **allegation C be closed as unsubstantiated.**

Allegation D – PO William Butler searched the car in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

§ 87(2)(b) stated that PO Butler searched his car by looking under the front seat and inside the glove compartment. Following this search, PO Butler asked § 87(2)(b) for the location of his driver's license and retrieved it from the center console. Initially during his interview § 87(2)(b) stated that PO Butler searched the front seat, the center console, the glove compartment, and the backseat. Later in his statement, § 87(2)(b) said the only areas of the car which he observed PO Butler search were the front seat and the center console. This search took place after § 87(2)(b) told PO Butler that his license was in the car's center console. PO Butler stated that he asked § 87(2)(b) for his driver's license and § 87(2)(b) stated that it was inside

the car's center console. PO Butler opened to center console to retrieve the document. He did not search any other areas of the car. PO Basnight and LSA O'Neill confirmed PO Butler's account.

§ 87(2)(g)

According to Kamins New York Search & Seizure p.5-133(2010 ed.) (encl. 2), "A police officer can conduct a limited search of a vehicle when there is a question about the ownership of the vehicle and the driver cannot satisfy the officer's questions." § 87(2)(g)

. It is therefore recommended that **allegation D be closed as exonerated.**

Team: 4

:

Investigator:	_____	Chanan Berkovits	February 22, 2011
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date